

26CMCV00368 26CMCV00368

County: los-angeles

Division: Civil Law and Motion

Department: E

Hearing date: 2026-09-23

Motion: MOTION TO QUASH SERVICE OF SUMMONS AND COMPLAINT OF PLAINTIFF JOSHUA STEVENS RODAS ON DEFENDANTS LINDSAY JEANETTE BATISTE and NELSON BATISTE III DATE: September 23, 2026 TIME: 8:30 A.M.

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Case Number: 26CMCV00368 Hearing Date: September 23, 2026 Dept: E

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES – SOUTH CENTRAL DISTRICT

JOSHUA STEVENS RODAS, an individual,

Plaintiff,

vs.

LINDSAY JEANETTE BATISTE, and NELSON BATISTE III, individuals, and DOES 1 to 20, inclusive,

Defendants.

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CASE NO: 26CMCV00368

[TENTATIVE] ORDER RE: MOTION TO QUASH SERVICE OF SUMMONS AND COMPLAINT OF PLAINTIFF JOSHUA STEVENS RODAS ON DEFENDANTS LINDSAY JEANETTE BATISTE and NELSON BATISTE III

DATE: September 23, 2026

TIME: 8:30 A.M.

DEPT.: E

Moving Party: Defendants Lindsay Jeanette Batiste and Nelson Batiste III

Responding Party: None

Notice: Ok

Tentative Ruling: Defendant's Motion to Quash Service of Summons is GRANTED.

I. BACKGROUND

This is a personal injury action. Plaintiff Joshua Steven Rodas alleges that, on or about February 28, 2024 he was operating his vehicle in a lawful manner when Defendants Lindsay Jeanette Batiste and Nelson III Batiste ("Defendants") executed an unsafe turn, causing a collision. As a result, Plaintiff alleges he suffered severe property damage and severe injuries.

On February 23, 2026, Plaintiff filed the instant action against Defendants alleging causes of action for: (1) Motor Vehicle; and (2) General Negligence.

On April 17, 2026, Plaintiff filed a Proof of Substituted Service for each Defendant.

On May 21, 2026, Defendants, specially appearing, filed the instant Motion to Quash Service of Summons.

As of September 17, 2026, no Opposition or Reply has been filed. Pursuant to Code Civ. Proc. § 1005(b), all papers opposing a noticed motion must be filed with the court and served on all other parties “at least nine court days ... before the hearing” and all reply papers at least five court days before the hearing. (Code Civ. Proc. § 1005(b).) Accordingly, any opposition or reply papers now filed are untimely, and the Court exercises its discretion to refuse to consider untimely filed papers. (Cal. R. Ct., Rule 1300(d); Mackey v. Bd. of Trustees of California State Univ. (2019) 31 Cal.App.5th 640, 657.)

II. ANALYSIS

A. Legal Standard

A defendant may move to quash service of summons on the ground the Court lacks personal jurisdiction. (Code Civ. Proc. § 418.10(a)(1).) And a court lacks jurisdiction over a party if there has not been proper service of process. (See Ruttenberg v. Ruttenberg (1997) 53 Cal.App.4th 801, 808.)

“Although the defendant is the moving party, the plaintiff must carry the initial burden of demonstrating facts by a preponderance of evidence justifying the exercise of jurisdiction in California.” (In re Automobile Antitrust Cases I and II (2005) 135 Cal.App.4th 100, 110; see also Coulston v. Cooper (1966) 245 Cal.App.2d 866, 868 (When a defendant moves to quash service of summons, the plaintiff has “the burden of proving the facts that did give the court jurisdiction, that is the facts requisite to an effective service”).)

“[C]ompliance with the statutory procedures for service of process is essential to establish personal jurisdiction. [Citation.]” (Dill v. Berquist Construction Co. (1994) 24 Cal.App.4th 1426, 1440, 1444 (“Dill”).) “[T]he filing of a proof of service creates a rebuttable presumption that the service was proper” but only if it “complies with the statutory requirements regarding such proofs.” (Id., at p. 1441-42; Floveyor Internat. v. Superior Court (1997) 59 Cal.App.4th 789, 795 (a filed proof of service creates rebuttable presumption that service was proper if it complies with statutory requirements).)

B. Discussion

Specially Appearing Defendants move the Court for an order quashing Plaintiff’s purported service of the Summons and Complaint.

Defendants argue Plaintiff’s purported service was defective because Plaintiff attempted to serve them at 949 S La Brea Ave., Inglewood, CA 90301-3815 (the “Property”), an address that they do not maintain. Per Defendants, Plaintiff’s attempted service of process at the Property was improper because neither Defendant lives, works or maintains a mailing address at the Property. (Declarations of: (a) Lindsay Jeanette Batiste, ¶¶ 4-6; (b) Nelson Batiste III, ¶¶ 4-6.)(1) Rather, Defendants declare they are not residents of the State of California and have lived in the Republic of Guatemala since 2025. (Id., ¶¶ 9, 12.) Defendants also attest they do not know or have any personal or professional relationship with the individual served with process. (Id., at ¶ 7.) Finally, each attests to not having been served with the Summons and Complaint in this matter. (Id., at ¶¶ 10-11.)

Plaintiff does not argue in opposition.

As is noted above, Plaintiff must carry the initial burden of demonstrating facts by a preponderance of evidence justifying the exercise of jurisdiction in California. In the absence of any argument by Plaintiff and based upon Defendants’ uncontested

declarations, the Court finds that Plaintiff has not properly served Defendants.

Accordingly, the Court GRANTS Defendants' Motion to Quash Service of Summons.

The Case Management Conference is

continued to December 8, 2026 at 8:30 a.m. in Dept. E.

[1] Save for the differing names of the Defendants, both Defendants declarations are identical. Accordingly, the Court's subsequent citations are to the declaration of Defendant Lindsay Jeanette Batiste with the understanding that the identical information is contained in the corresponding citation to the declaration of Defendant Nelson Batiste III.